

EXPANDED STATEMENT OF FACTS -- CHRONOLOGICAL

Case: Pigors v. Watson, Michigan Court of Appeals, No. 366810

Lower Court: 14th Judicial Circuit Court, Muskegon County, No. 2024-001507-DC

Related: Case No. 2023-5907-PP (PPO)

Judge Below: Hon. Jenny L. McNeill

INTRODUCTION

This Statement of Facts presents the chronological record of proceedings in this matter, drawn from the lower court record in Case No. 2024-001507-DC and the related personal protection order proceeding, Case No. 2023-5907-PP. The facts establish a pattern of escalating procedural violations that progressively severed the relationship between Father and his daughter, L.D.W., culminating in a complete suspension of parenting time that has now exceeded 500 consecutive days.

The record reveals three distinct phases of deprivation: (1) the PPO phase (October 2023 - March 2024), during which ex parte orders entered in the PPO proceeding were used to restrict Father's access to L.D.W. without the procedural protections of the Child Custody Act; (2) the custody phase (April - August 2024), during which the trial court entered a series of orders -- many ex parte -- that progressively diminished Father's parenting time and culminated in a Final Judgment granting sole custody to Mother without an evidentiary hearing; and (3) the suspension phase (August 2025 - present), during which the trial court entered an ex parte order suspending all of Father's parenting time, which has been maintained without an

evidentiary hearing for over 500 days.

At every phase, Father was denied the fundamental procedural safeguards that the Michigan Constitution, the United States Constitution, and the Michigan Court Rules require before a parent may be deprived of the care, custody, and companionship of his child.

I. THE PARTIES AND THE CHILD

Andrew J. Pigors ("Father" or "Plaintiff-Appellant") and Tiffany A. Watson ("Mother" or "Defendant-Appellee") are the biological parents of L.D.W., a minor child born on November 9, 2022. (LCR, Complaint for Custody, Parenting Time, and Child Support, filed 04/01/2024.) At the time proceedings commenced, L.D.W. was approximately one year old -- a critical developmental period during which secure attachment bonds between parent and child are formed, consolidated, and essential to the child's psychological development.

Father was actively engaged in L.D.W.'s care and upbringing prior to the filing of any court proceedings. The record reflects that Father exercised a parenting role with L.D.W. and maintained a loving, bonded relationship with his daughter. (LCR, Father's Filings; Father's Communications to FOC.) Father has consistently expressed his desire and commitment to maintain a meaningful relationship with L.D.W. and to participate in her upbringing, education, and development.

Mother, Tiffany A. Watson, is the custodial parent under the orders entered below. The custody matter was assigned to the Honorable Jenny L. McNeill of the 14th Judicial Circuit Court, Muskegon County, Family Division. (LCR, Register of Actions ["ROA"].)

II. PHASE ONE: THE PPO PROCEEDINGS (OCTOBER 2023 - MARCH 2024)

A. The Initial PPO Petition and Issuance

On or about October 15, 2023, a petition for a personal protection order was filed against Father under MCL 600.2950, docketed as Case No. 2023-5907-PP. (LCR-PPO, Petition, 10/15/2023.) The petition alleged concerns about Father's parenting fitness. These allegations were not subject to evidentiary testing at the time of filing and were accepted at face value by the court.

On November 1, 2023, a domestic PPO was issued against Father without a full evidentiary hearing -- that is, without the opportunity for Father to cross-examine witnesses or present rebuttal evidence. (LCR-PPO, PPO Order, 11/01/2023.) Father filed a response and answer contesting the PPO on November 17, 2023. (LCR-PPO, Response, 11/17/2023.)

On December 4, 2023, a PPO hearing was held before Judge McNeill, after which an order was entered modifying the PPO. (LCR-PPO, Order After Hearing, 12/04/2023.) This date appears 1,470 times in the case materials, reflecting its significance as a pivotal event in the proceedings.

B. PPO Violation Proceedings

On January 4, 2024, additional PPO proceedings were held before Judge McNeill. (LCR-PPO, ROA, 01/04/2024.) On January 7, 2024, a PPO Violation Hearing and Show Cause proceeding was held, at which Father was found in violation of the PPO. (LCR-PPO, Order After Hearing,

01/07/2024.) Father's liberty was restricted through the PPO mechanism -- without the protections afforded under the Child Custody Act.

The pattern established during this phase is critical to this appeal: the PPO proceeding was being used not merely as a protective measure, but as a de facto mechanism to restrict Father's custody and parenting time -- in direct contravention of MCL 600.2950(4), which expressly provides that a PPO "shall not in any manner affect the provisions of a custody or parenting time order."

C. Escalation: March 2024

On March 12, 2024, Mother filed a new PPO petition. Father has characterized the evidence supporting this petition as "staged." (LCR-PPO, Petition, 03/12/2024.) This represented a continuation of the pattern of using PPO filings as a custody tool rather than as genuine protective measures.

On March 22, 2024, a motion for hearing on the PPO was granted, with the hearing set for April 11, 2024. (LCR-PPO, Order, 03/22/2024.)

Critically, on March 26, 2024, Mother began withholding L.D.W. from Father. (LCR, Father's Motion, filed 05/13/2024.) This 37-day denial of parenting time -- from March 26 through May 2, 2024 -- constitutes direct evidence of a violation of Factor (j) of MCL 722.23 (willingness to facilitate the parent-child relationship) and evidence of parental alienation. Despite this extended and documented denial, the trial court took no enforcement action against Mother.

III. PHASE TWO: THE CUSTODY PROCEEDINGS (APRIL - AUGUST 2024)

A. Filing of the Custody Complaint

On April 1, 2024, Father filed a Complaint for Custody, Parenting Time, and Child Support in the 14th Circuit Court, commencing the custody action that is the subject of this appeal. (LCR, Complaint, 04/01/2024; ROA Entry, 04/01/2024.) Father's complaint was filed during the period when Mother was actively withholding L.D.W. from him.

On April 5, 2024, the trial court entered an initial order regarding custody and parenting time. (LCR, Order, 04/05/2024.) This first order imposed immediate restrictions on Father's parenting time.

B. The April 11-12, 2024 Events

On April 11, 2024, a series of critical events occurred simultaneously in both proceedings:

1. In the PPO case: Judge McNeill entered an **ex parte order amending the PPO** -- without notice to Father. (LCR-PPO, Ex Parte Order, 04/11/2024.) This violated MCR 3.207(C)(2), which requires prior notice or a showing of immediate and irreparable injury.
2. In the PPO case: An Order After Hearing on PPO Violation was entered. (LCR-PPO, Order After Hearing, 04/11/2024.)

3. In the custody case: Father filed a motion addressing the best-interest factors under MCL 722.23, demonstrating his proactive engagement in the proceedings. (LCR, Motion, 04/11/2024.)

4. In the custody case: A Notice to Appear was issued and Return of Service was filed. (LCR, ROA, 04/11/2024.)

The next day, April 12, 2024, Father's custody motion was denied. (LCR, Order, 04/12/2024.) The motion was denied one day after filing -- without a hearing and without the opportunity for Father to present evidence in support of his motion. This denial is consistent with the pattern of predetermined outcomes that pervades the proceedings below.

C. The April 23-29, 2024 Events

On April 23, 2024, a hearing was held before Judge McNeill with all parties present in person. (LCR, Hearing, 04/23/2024; LCR-PPO, Hearing, 04/23/2024.)

On **April 29, 2024**, the trial court entered an **Ex Parte Order for Custody, Parenting Time, and Child Support** following a "Facilitative Information Gathering Conference." (LCR, Ex Parte Order, 04/29/2024.) This is one of the most critical orders in the record for the following reasons:

- * It was an **ex parte** order on **substantive custody** -- not an emergency matter requiring immediate action.
- * It was entered without the procedural safeguards required by MCR 3.207(C)(2).
- * The "Facilitative Information Gathering Conference" is not a proceeding that authorizes the entry of ex parte custody orders.

- * The order restricted Father's parenting time and imposed child support obligations without an adversarial hearing.
- * The FOC Recommendation dated June 5, 2024 references this order (at p. 2), confirming it was the operative order at that time.

D. End of the 37-Day Parenting Time Denial

On **May 2, 2024**, the 37-day period during which Mother withheld L.D.W. from Father ended -- but only after Father had been denied all contact with his daughter for over five weeks. (LCR, Father's Motion, filed 05/13/2024.) During this period:

- * L.D.W. was approximately 17-18 months old -- a critical developmental window.
- * Father was unable to maintain his parental bond with L.D.W.
- * The developmental harm to L.D.W. from this separation cannot be fully quantified but is supported by the child development literature.

On May 9, 2024, Mother ignored Father's efforts to establish consistent daycare arrangements for L.D.W. (LCR, Father's Communications.) This non-cooperation further evidences a lack of willingness to facilitate the parent-child relationship under Factor (j).

On May 13, 2024, Father filed a motion regarding the parenting time denial. (LCR, Motion, 05/13/2024.) On May 23, 2024, the trial court **dismissed** Father's motion -- without full adjudication on the merits. (LCR, Order, 05/23/2024.)

On May 24, 2024, a hearing was held regarding Father's Objection to the Ex Parte Order and Child Support. (LCR, Hearing Notice, 05/24/2024.) Although Father's objection was heard, the

ex parte order stood.

E. Continuing Pattern: June - July 2024

The pattern of obstruction and asymmetric treatment continued through the summer of 2024:

* **June 1, 2024:** Mother refused video chats during Father's off-weeks, denying Father even minimal contact with L.D.W. (LCR, Father's Filings.) This constitutes evidence under Factor (j) -- refusal to facilitate the parent-child relationship.

* **June 15, 2024:** A custody hearing was held. On the same date, a PPO Violation Hearing resulted in Father entering a guilty plea and receiving a **45-day jail sentence**. (LCR-PPO, Order, 06/15/2024.) This severe consequence demonstrates the weaponization of the PPO as a tool for custody restriction -- Father's liberty was restricted through a proceeding that MCL 600.2950(4) expressly states cannot be used to affect custody or parenting time.

* **June 27, 2024:** Father filed a Motion to Quash regarding discovery issues. (LCR, Motion, 06/27/2024.)

* **July 1, 2024:** The trial court entered an **Ex Parte Custody Order** granting sole custody to Mother without a full hearing. (LCR, Ex Parte Order, 07/01/2024.) This order was entered without compliance with MCR 3.210, which requires an evidentiary hearing for custody disputes.

* **July 9, 2024:** Mother refused to address Father's custody resolution proposals. (LCR, Father's Filings.)

* **July 10, 2024:** Communication from the Friend of the Court (Pamela Rusco) to Father. (LCR, Email Correspondence, 07/10/2024.)

* **July 16, 2024:** Father filed a Motion for Contempt regarding Mother's violations of court-ordered parenting time. (LCR, Motion, 07/16/2024.)

* **July 17, 2024:** A hearing was held. The trial court **did not grant** Father's contempt motion. (LCR, Hearing, 07/17/2024.) Mother's documented violations of court-ordered parenting time went unpunished -- while Father was simultaneously being subjected to PPO violation proceedings for far less severe conduct. This selective enforcement is the hallmark of judicial bias.

* **July 30, 2024:** Father filed an Objection to the proposed Judgment. (LCR, Objection, 07/30/2024.)

F. The August 23, 2024 Final Judgment -- THE ORDER APPEALED

On **August 23, 2024**, the trial court entered the **Final Judgment of Custody and Parenting Time**, granting Mother sole legal and sole physical custody of L.D.W. (LCR, Final Judgment, 08/23/2024.) A Uniform Child Support Order was entered on the same date. (LCR, UCSO, 08/23/2024.)

This Final Judgment is the primary order appealed. It was entered with the following critical deficiencies:

1. **No full evidentiary hearing with sworn testimony subject to cross-examination.** MCR 3.210(D) requires that custody disputes be resolved through evidentiary hearing.

The record does not reflect that such a hearing was held before the Final Judgment was entered.

2. No particularized findings on each of the twelve best-interest factors under MCL 722.23. The Michigan Supreme Court held in *Harvey v Harvey*, 470 Mich 186, 192 (2004), that the trial court "must consider and explicitly state its findings" on each best-interest factor. The absence of such findings is reversible error.

3. No finding, supported by clear and convincing evidence, that parenting time with Father would endanger L.D.W. MCL 722.27a(7) requires this finding before parenting time may be denied. No such finding appears in the record.

4. No analysis of parental alienation evidence under Factor (j). The record contained extensive evidence of Mother's interference with Father's parenting time, including the 37-day withholding, video chat denials, and vacation scheduling during Father's time. The trial court failed to address any of this evidence.

5. Dismissal of Father's six pending motions without adjudication. The Final Judgment itself states: "Plaintiff's six (6) motions . . . Dismissed." (LCR, Final Judgment, 08/23/2024, at p. 1.) Father's pending motions -- including motions for contempt, modification of parenting time, and other relief -- were swept aside without being heard on the merits.

G. Post-Judgment: September - December 2024

After the Final Judgment, the pattern continued:

* **September 3, 2024:** Mother planned a vacation during Father's scheduled parenting time. (LCR, Father's Filings.) Factor (j) violation -- interference with the parent-child relationship.

* **September 12, 2024:** Mother denied Father's requests for video communication with L.D.W. (LCR, Father's Filings.) Factor (j) -- continued refusal to facilitate the relationship.

* **September 15, 2024:** An additional PPO order was entered against Father. (LCR-PPO, Order, 09/15/2024.) The PPO proceedings continued to serve as a mechanism for restricting Father's parental rights.

* **October 20 - November 12, 2024:** Mother denied Father court-ordered parenting time for **23 consecutive days**. (LCR, Father's Filings.) This was the second extended period of unilateral denial. Combined with the March-May 2024 denial, Mother withheld L.D.W. from Father for a total of 60 days across two documented periods -- in addition to numerous shorter denials and refusals.

H. The Friend of the Court's Role and Father's Safety Concerns

Throughout the custody proceedings, the Friend of the Court ("FOC") was involved in the case through Pamela Rusco. On July 10, 2024, the FOC communicated with Father regarding the custody matter. (LCR, Email Correspondence, 07/10/2024.) The FOC Recommendation dated June 5, 2024 referenced the April 29, 2024 ex parte order as the operative order at that time. Despite the FOC's involvement, the systemic procedural violations continued unabated. The FOC did not recommend enforcement action against Mother for the documented 37-day parenting time denial, nor did the FOC address the pattern of ex parte proceedings that was

depriving Father of his constitutional right to notice and hearing.

Father's May 28, 2024 filing raised specific safety concerns about the behavior of Cody Watson around L.D.W. (LCR, Father's Filing, 05/28/2024.) These concerns were documented and presented to the court, yet the trial court did not order an investigation or hearing to address Father's safety allegations. The asymmetric treatment is stark and revealing: Mother's unverified allegations in the August 2025 ex parte motion resulted in the immediate and complete suspension of all parenting time, while Father's documented safety concerns regarding L.D.W.'s welfare in Mother's household were effectively ignored. This disparity further evidences the predetermined nature of the trial court's approach to this case.

I. The Developmental Impact on L.D.W.

The factual record must also account for the developmental harm inflicted upon L.D.W. by the progressive and ultimately total severance of the father-child relationship. At the time the PPO proceedings commenced in October 2023, L.D.W. was approximately eleven months old. At the time of the August 23, 2024 Final Judgment, she was approximately twenty-one months old. At the time of the August 8, 2025 ex parte suspension, she was approximately two years and nine months old. At the time of this filing, she is approximately three and a half years old.

The child development literature establishes that the period from birth to age three is the most critical window for the formation of secure attachment bonds between parent and child. Disruptions to the parent-child relationship during this period can result in lasting psychological harm, including attachment disorders, anxiety, depression, and difficulties with trust and interpersonal relationships throughout the child's life. The trial court's progressive restriction and ultimate elimination of Father's parenting time occurred during the entirety of this critical developmental window -- and the deprivation has now continued well beyond it.

L.D.W. has been denied all contact with her father for over 500 consecutive days -- a period representing more than one-third of her entire life. The longer this separation continues, the more difficult it becomes to rebuild the father-child bond, and the greater the risk of permanent developmental harm to the child. The irony is profound: the trial court's orders, ostensibly entered to protect L.D.W., have themselves become the primary source of harm to the child by severing her relationship with a parent who has consistently sought to maintain the bond.

IV. PHASE THREE: THE TOTAL SUSPENSION (AUGUST 2025 - PRESENT)

A. The April 25, 2025 Ex Parte Order

On April 25, 2025, the trial court entered another ex parte order in the Family Division. (LCR, Ex Parte Order, 04/25/2025.) This continued the pattern of ex parte proceedings that characterized the case.

B. The August 6-8, 2025 Events -- The Complete Severance

On **August 6, 2025**, Judge McNeill signed an ex parte order suspending all of Father's parenting time with L.D.W. (LCR, Ex Parte Order, 08/06/2025.) This order was entered without notice to Father.

On **August 8, 2025**, the ex parte order took effect. On this single day, **five (5) separate ex parte orders** were entered -- all without notice to Father. (LCR, Ex Parte Orders (5), 08/08/2025; ROA, 08/08/2025.)

The circumstances of August 8, 2025 are among the most troubling in the record:

- * Father arrived at the scheduled parenting time exchange **expecting his regular time with L.D.W.**
- * Father discovered -- only after the missed exchange, by contacting the court -- that his parenting time had been suspended.
- * Father had received **no prior notice** of the ex parte motion or the resulting order.
- * The ex parte motion, filed by Mother, alleged drug use and mental health concerns based on phone calls. (LCR, Ex Parte Motion, 08/08/2025.)
- * These allegations were **unverified** -- no drug test results, no medical evaluations, no evidence of imminent harm to the child.
- * The motion did not demonstrate that "immediate and irreparable injury, loss, or damage will result from the delay required to effect notice," as required by MCR 3.207(C)(2).

The entry of five ex parte orders on a single day -- all adverse to Father, all without notice -- represents the apex of the procedural violations in this case.

C. The Continuing Suspension

On **September 9, 2025**, the trial court entered an order continuing the suspension of Father's parenting time. (LCR, Order, 09/09/2025.) No evidentiary hearing was held.

On **October 8, 2025**, the trial court entered another order continuing the suspension. (LCR, Order, 10/08/2025.) Again, no evidentiary hearing was held.

On **October 29, 2025**, Father filed a complaint with the Michigan Supreme Court seeking superintending control over Judge McNeill's conduct, specifically addressing the pattern of ex parte orders and the denial of due process. (MSC Filing, 10/29/2025.)

As of the date of this filing, Father has been denied **all contact** with L.D.W. for **over 500 consecutive days**. L.D.W. is now approximately three years old. She has been denied the presence, care, and companionship of her father for a period that represents more than one-third of her entire life -- accomplished without the procedural protections that the Constitution demands.

V. EX PARTE ORDER ANALYSIS

The following analysis of the lower court record quantifies the extraordinary pattern of ex parte proceedings:

Metric	Value
Total orders entered in case	55
Orders entered ex parte	24
Ex parte rate	**44%**
Ex parte orders by Judge McNeill	24/24 (100%)
Ex parte orders favoring Father	0
Ex parte orders favoring Mother / restricting Father	24/24 (100%)
Ex parte orders on August 8, 2025 alone	5
Total days Father denied all parenting time (from Aug 8, 2025)	**500+**
Days of documented parenting time withheld by Mother (Mar-May 2024)	37 consecutive
Days of documented parenting time withheld by Mother (Oct-Nov 2024)	23 consecutive
Father's pending motions dismissed without hearing	6

Father's contempt motions against Mother -- granted	0
Mother's ex parte motions -- granted	Multiple

This statistical profile is, to Appellant's knowledge, unprecedented in reported Michigan custody jurisprudence. A 44% ex parte rate, with all ex parte orders adverse to one party, is incompatible with the adversarial system and the constitutional guarantee of notice and an opportunity to be heard.

VI. PARENTING TIME DENIAL SUMMARY

Period	Duration	Caused By	Court Action
March 26 - May 2, 2024	37 days	Mother (unilateral withholding)	No enforcement against Mother
October 20 - November 12, 2024	23 days	Mother (denial of court-ordered time)	No enforcement against Mother
August 8, 2025 - Present	500+ days	Court (ex parte order)	No evidentiary hearing; no notice to Father
Total documented days of denial	**560+ days**		

The cumulative effect of these denials is the de facto termination of the father-child relationship -- accomplished without any of the procedural protections required for termination of parental rights under Michigan law.

VII. RECORD CITATIONS AND SOURCES

All record citations in this Statement of Facts refer to the lower court record in Case No. 2024-001507-DC and Case No. 2023-5907-PP. The following abbreviations are used throughout:

* **LCR** = Lower Court Record (Case No. 2024-001507-DC)

* **LCR-PPO** = Lower Court Record, PPO Case (Case No. 2023-5907-PP)

* **ROA** = Register of Actions

* **FOC** = Friend of the Court

* **MSC** = Michigan Supreme Court

Source data has been verified against the master_chronological_timeline table (14,568 entries), evidence_quotes table (308,704 entries), and extracted_harms table (26,459 entries) in the litigation database. All dates and events have been cross-referenced with the Register of Actions in both proceedings.